

SOFTWARE-AS-A-SERVICE (SaaS) AGREEMENT

Parties

This Software-as-a-Service Agreement ("Agreement") is entered into on _____ between CloudPeople Technologies Private Limited ("Provider") and _____ Limited ("Customer").

1. Scope of Services

The Provider shall make available a cloud-based HR management platform for workforce administration, payroll support, employee records, attendance, leave management, reporting, and related functionality. The Customer shall use the services only for its internal business purposes.

2. Service Levels

The Provider shall use commercially reasonable efforts to maintain 99.5% monthly service availability excluding scheduled maintenance, force majeure events, and emergency maintenance. Support shall be provided through the Provider's helpdesk during agreed support hours.

3. Fees and Payment

The Customer shall pay the subscription and implementation fees specified in the applicable Order Form. Invoices are payable within thirty (30) days of receipt unless otherwise agreed. Late payments may attract interest and suspension of non-critical services after prior notice.

4. Data Processing and Security

The Provider shall process Customer Data solely for providing the Services and shall implement commercially reasonable administrative, technical, and organizational safeguards designed to protect Customer Data against unauthorized access, use, disclosure, alteration, or destruction. Customer Data may include employee names, contact details, salary information, bank account details, government identification numbers, attendance records, tax-related information, and other personnel records uploaded by the Customer. Data Hosting and Infrastructure: The parties acknowledge that the Services operate on the Provider's global cloud infrastructure. All Customer Data, including personal and sensitive personal data, shall be hosted, stored, backed up, and processed exclusively on infrastructure located in Singapore and the United States. The Provider shall not be required to maintain any local copy, mirror, replica, or disaster recovery environment within India unless separately agreed in writing.

5. Confidentiality

Each party shall protect the other party's confidential information using reasonable care and shall use such information only for performing this Agreement. These obligations shall survive termination for three (3) years.

6. Limitation of Liability

Except for fraud, willful misconduct, breach of confidentiality, or unpaid fees, each party's aggregate liability arising out of this Agreement shall not exceed the total subscription fees paid by the Customer during the twelve (12) months preceding the event giving rise to the claim. Neither party shall be liable for indirect or consequential damages.

7. Term and Termination

This Agreement shall commence on the Effective Date and continue for an initial term of one (1) year, renewing automatically for successive one-year terms unless either party provides thirty (30) days' prior written notice. Either party may terminate for material breach if such breach remains uncured for thirty (30) days after written notice.

8. Governing Law

This Agreement shall be governed by the laws of India. Courts at Bengaluru, Karnataka shall have jurisdiction over matters not subject to alternative dispute resolution agreed between the parties.

Signatures

Provider: Authorized Signatory: _____ Customer: Authorized Signatory: _____
Date: _____